

STATE OF NEW YORK

1490--A

Cal. No. 985

2025-2026 Regular Sessions

IN SENATE

January 10, 2025

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Judiciary -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the civil practice law and rules and the administrative code of the city of New York, in relation to updating the fee collected by county clerks for deposit into the cultural education account

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraph b of paragraph 4 of subdivision (a) and
2 subparagraph b of paragraph 11 of subdivision (b) of section 8021 of the
3 civil practice law and rules, subparagraph b of paragraph 4 of subdivi-
4 sion (a) as amended by section 2 and subparagraph b of paragraph 11 of
5 subdivision (b) as amended by section 3 of part B of chapter 83 of the
6 laws of 2002, are amended to read as follows:
7 b. For recording, entering, indexing and endorsing a certificate on
8 any instrument, an additional fee of five dollars to be paid monthly by
9 county clerks to the commissioner of education, after deducting twenty-
10 five cents, for deposit into the New York state local government records
11 management improvement fund and an additional [~~fifteen~~] thirty dollars,
12 after deducting [~~seventy-five cents~~] one dollar, for deposit to the
13 cultural education account.
14 b. For recording any instrument required by statute to be recorded, an
15 additional fee of five dollars to be paid monthly by county clerks to
16 the commissioner of education, after deducting twenty-five cents, for
17 deposit into the New York state local government records management
18 improvement fund and an additional [~~fifteen~~] thirty dollars, after
19 deducting [~~seventy-five cents~~] one dollar, for deposit to the cultural
20 education account.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00524-03-5

§ 2. Subdivision a of section 7-604 of the administrative code of the city of New York, as amended by section 4 of part B of chapter 83 of the laws of 2002, is amended to read as follows:

a. The register shall be paid a salary to be fixed by the mayor. All fees shall be the property of the city. All sums so received shall be paid to the commissioner of finance monthly without deduction. The following additional [~~fee of twenty dollars~~] fees for recording any instrument required by New York state statute to be recorded pursuant to subdivision one of section 7-614 of this [~~code~~] chapter shall be used as follows: five dollars paid monthly by the commissioner of finance to the New York state commissioner of education, after deducting twenty-five cents, for deposit into the New York state local government records management improvement fund and [~~fifteen~~] thirty dollars, after deducting [~~seventy-five cents~~] one dollar, for deposit to the cultural education account.

§ 3. This act shall take effect on the sixtieth day after it shall have become a law.